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File No.: EXP202308191

## RESOLUTION OF

### PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

#### BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 9, 2023. The complaint is directed against B.B.B. with NIF \*\*\*NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that they are a neighbor of the property adjacent to that of the respondent, located at \*\*\*ADDRESS.1. They assert that the respondent has cameras in their home that, due to their location and orientation, are directed towards the complainant's property.

Along with their complaint, they provide:

- An image of a surveillance camera located on the roof of a house oriented towards the exterior of the same.
- An image of a surveillance camera located in a window, whose angle of capture does not direct towards the property in which it is located.
- A video showing the previously described cameras. In it, it can be observed that:
  - o The camera located on the roof, due to its high position, has a capture angle that exceeds the wall that bounds the property in which it is located. Furthermore, the orientation of the camera is directed towards the adjacent property.
  - o The camera located in the window is oriented towards the adjacent property, specifically towards the access door to the same.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by postal means, was returned by the postal service on June 30, 2023, for not having been collected from the office, after leaving a notice in the mailbox of the respondent. As noted in the receipt in the file, two delivery attempts were made: the first on June 20, 2023, resulting in "absent"; and the second on June 22, 2023, also resulting in "absent."

In light of the above, a new forwarding was made, which was returned by the postal service on August 1, 2023, for not having been collected from the office, after leaving a notice in the mailbox of the respondent. As noted in the receipt in the file, two delivery attempts were made: the first on July 20, 2023, resulting in "absent"; and the second on July 21, 2023, with the same result.

THIRD: On September 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On October 10, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was collected on October 10, 2024, as noted in the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present proceeding,

#### PROVEN FACTS

FIRST: The property located at \*\*\*ADDRESS.1 has two surveillance cameras, one located in a window and the other on the roof of the house.

SECOND: Due to their location and orientation, both cameras capture the adjacent property of a third party.

THIRD: The data controller is B.B.B. with NIF \*\*\*NIF.1, the respondent.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights,

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Digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

### Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Considering the nature of the facts that have given rise to the proceedings and the concurrent circumstances, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to said Regulation.

Article 4.2 of the GDPR defines the concept of “processing” of personal data as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, erasure or destruction.”

Images captured by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

The party being complained against carries out the processing of personal data in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

It is therefore pertinent to analyze whether the processing of personal data carried out through the surveillance system of the party being complained against is in accordance with the provisions of the GDPR.

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#### Obligations regarding video surveillance

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

However, the processing of images through a video surveillance system, to be compliant with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be fulfilled.

In this regard, a “layered information” system is provided for video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information obligation shall be deemed fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. In the event that the space

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If the video surveillance area has multiple access points, the corresponding video surveillance area sign must be placed at each of them.

This information must be provided in advance - considering Article 39 of the GDPR. The objective is to make the context of the surveillance clear.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this latter case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing operations carried out under their responsibility, which must include the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, dated April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

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V

Violation of Article 5.1 c) of the GDPR

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera systems or video cameras for the purpose of ensuring the security of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior government authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve

the security of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, it may not affect public spaces.

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surrounding areas, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

In this case, the respondent has a surveillance system consisting of two cameras. The first is located on the roof of the residential property owned by them. The second is positioned in a window, also at a certain height above ground level. Both capture images of the neighboring property belonging to a third party.

VI

Qualification and classification of the infringement of Article 5.1.c) of the GDPR

In accordance with the available evidence, it is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

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a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the

provisions of this Regulation;  
(...)"

In this case, given the circumstances involved, it is considered appropriate to issue a warning for the infringement of the aforementioned article.

## VIII

### Corrective measures

Having confirmed the infringement, the controller may be required to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...".

In this case, the controller is required to notify this Agency within one month of the adoption of the following measures:

- Provide evidence of having reoriented the cameras to avoid capturing the property of third parties. If the reorientation of the cameras is insufficient to prevent the capture of third-party property, they must proceed with the removal of these cameras.

It is warned that failure to comply with the order to adopt measures imposed by this agency in this resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement under Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

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Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,  
IT IS AGREED:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF \*\*\*NIF.1, for a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF \*\*\*NIF.1, pursuant to Article 58.2.d) of the GDPR, to demonstrate compliance with the measures determined in Legal Basis VIII within one month from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to B.B.B., with NIF \*\*\*NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification

of this resolution, it will consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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